



27574 Commerce Center Drive #134
Temecula, CA 92590

Phone: (619) 286-3326
www.toddco.com

Quote No.: 26-1013

Customer

Company: The Toro Company
Address: 12330 Crosthwaite Circle
Poway, CA 92064

Contact: Mr. Ron Bark
Phone: (858) 530-0888 ext. 151
Email: ron@eaglemold.com

Qty	Part Number	Description	Total
1	CUSTOM- INTEGRATION	Inspection System Upgrade including the following options: • 4x Remove and Replace Cognex Cameras - o Keyence VS-L320CX - Smart Camera - Vision System, Zoom, 3.2MP, Color • Modify PLC programming (If necessary) • Design, Fabricate and Install Camera Mounts	\$75,748
Subtotal:			\$75,748
TOTAL:			\$75,748

Note: Price does not include sales tax

Delivery:	8-10 weeks A.R.O.	Date Issued:	February 18, 2025
F.C.A.:	Temecula, CA	Terms:	See Milestone Payments
Freight:	Truck freight, carrier TBD	Valid Period:	30 days
Milestone Payments:	50% due upon order acceptance; 25% NET 30 due upon receipt of upgrade materials; 15% NET 30 due upon installation; 10% NET 30 due upon factory acceptance		

Inspection System Upgrade Features

- 4x Keyence VS-L320CX Vision System Cameras (Including Lighting and Controllers)
- Custom Mounting
- One-year standard warranty



Options included in system price

Remove and Replace Cameras

TODDCO's Engineering Team will remove and replace the existing vision system and replace with Keyence's VS-L320CX Vision System Cameras.

Modify PLC Programming

TODDCO's programming team will modify exiting PLC code to accommodate the new vision systems. This may or may not be necessary as the vision systems should be a direct replacement. Alternatively, TODDCO may decide to add a series of relays to accommodate any signal differences.

Mounting

TODDCO's engineering team will design new mounts for the Keyence cameras and will fabricate and install them.

Conclusion

Eagle Mold's Inspection System Upgrade will be configured and programmed to meet specific inspection requirements. The quoted system upgrade takes into account that on-site installation/integration activities will be required. To ensure the reliability of the process to optimize the programming, TODDCO requests multiple samples of the intended products. The goal will be to design the mounting to be as versatile as possible; however, additional hardware changes may be needed to accommodate future products and/or inspection parameters.

Because of TODDCO's production-ready philosophy TODDCO recommends that Eagle Mold provide a substantial quantity of parts intended for inspection during the debug phase of the project.

Prior to acceptance, Eagle Mold is encouraged to participate in a "buy-off" process to verify that the system will successfully meet the necessary inspection parameters and that all custom mounting and programming are acceptable for production level products. After successfully demonstrating that the system meets the process requirements, the customer's representative officially accepts the system. This provides the ultimate security that the inspection upgrade will be "production ready" when our technicians complete the project.

Thanks for selecting a TODDCO Custom Integration Solution for your critical inspection requirements. As a U.S. small business manufacturer, TODDCO respects Eagle Mold's commitment to quality production. We look forward to supporting your mission with high quality, durable, factory automation equipment. Please contact us whenever TODDCO may be of service.

Sincerely,
David J. Bratty, Sr.
619-286-3326 ex. 401

Appendix – Standard Terms & Conditions

Toddco³ Terms and Conditions

Applicable to Products Sold by Toddco³

1. ENTIRE AGREEMENT

This document, together with any agreement or purchase order incorporating this document, and any attachments and exhibits incorporated herein contain all of the terms and conditions relating to the sale of Products of Toddco³. (Hereinafter referred to as "Toddco³") and supersedes all prior understandings and agreements between CUSTOMER and Toddco³, whether written or oral, including all prior terms and conditions, purchase orders and representations and warranties (including those contained in written or oral promotional or marketing materials or representations). In the event of a conflict between the language of this document or exhibit, the language of this document shall be controlling.

2. SHIPMENT

All Quoted prices are FOB Toddco³'s factory.

Shipment dates are estimates and not guarantees. Toddco³ will make every reasonable effort to meet any delivery schedule quoted. If a specified shipment date is expected to be missed, Toddco³ will endeavor to notify CUSTOMER (hereafter referred to as "CUSTOMER") and provide a new shipment estimate.

CUSTOMER shall pay all delivery and handling charges and all Federal, State and Local taxes and other governmental charges in connection with the rental, purchase, possession or use of the equipment including, without limitation, sales, use, property, franchise and excise taxes on gross rent receipts. If requested to do so by Toddco³, CUSTOMER will furnish Toddco³ with proof that CUSTOMER has insurance coverage on the equipment acceptable to Toddco³.

Toddco³ will ship according to CUSTOMER's shipping instructions, if appropriate; otherwise by an appropriate method determined by Toddco³. Equipment shall NOT be shipped and shall NOT be returned via US Mail.

Toddco³ reserves the right to make partial shipments unless otherwise agreed upon in writing by both parties.

In the event any shipment or portion thereof is delayed more than 30 days from any scheduled shipment date, at CUSTOMER's request, Toddco³ shall arrange for premium transportation and, if such delay is not excused as having been caused by a force majeure, shall pay that portion of the shipment costs attributable thereto. Toddco³ reserves the right to select method of shipment for premium transportation.

If CUSTOMER requests or otherwise causes Toddco³ to store Products beyond the scheduled shipment date, CUSTOMER will be invoiced for the costs of such storage, including the costs of any insurance on the stored Products.

Defects or discrepancies in or like objections to equipment must be reported to Toddco³ in writing within 72 hours after CUSTOMER receives the equipment or it will be conclusively presumed that the equipment was as ordered, was received in good condition, and is accepted.

3. PACKAGING

Toddco³ shall package the Products in accordance with usual and customary commercial standards and practices. CUSTOMER shall pay Toddco³ for the costs of any special packaging.

4. SECURITY INTEREST

Toddco³ shall retain a purchase money security interest in the Products, owing or paid to CUSTOMER, until such time as CUSTOMER has paid the purchase price to Toddco³ in full. CUSTOMER shall perform whatever actions, which in the reasonable judgment of Toddco³, shall be necessary to maintain the security interest for the benefit of Toddco³.

At Toddco³'s option, from the time the Products are delivered by Toddco³, to the FOB point, until such time as the security interest is removed by payment in full of the purchase price, CUSTOMER shall insure the Products in the full amount of the security interest against all loss, damage or destruction.

The CUSTOMER may be required to pay a Security Deposit of a specified amount. If CUSTOMER defaults in the prompt payment of any sums due, or in the performance of any obligation hereunder, or if a proceeding in bankruptcy, dissolution, liquidation, insolvency, receivership or reorganization is instituted by or against the CUSTOMER, CUSTOMER's property or business, Toddco³ shall have the right at its sole election to apply said Security Deposit to the CUSTOMER's account for the curing of such default and to declare the unpaid balance owing under any orders to be immediately due and payable, and to take immediate possession of the Products or any portion thereof without demand, further notice or legal process.

5. PRICES

Published prices are stated in U.S. dollars and are subject to change without notice. Unless otherwise indicated in a quotation, all deliveries will be invoiced at prices in effect upon order acceptance.

6. INVOICING AND PAYMENT

CUSTOMER agrees all rent or purchase payments will be made in cash, company check, approved credit card or wire transfer on or before the due date printed on the billing invoice.

Toddco³ shall issue an invoice for any initial payment on the date an order is accepted, and an invoice for the balance of the order price in accordance with terms specified in the Supplemental Terms and Conditions located in the Toddco³ Proposal. If CUSTOMER request or otherwise cause a delay in shipment, Toddco³ reserves the right to issue its invoice at any time on or after the scheduled shipment date.

Payments are due in full within 30 days from the date of the invoice unless otherwise noted in the Supplemental Terms and Conditions. Invoiced amounts are not subject to reduction by set-off or otherwise, without the express consent of Toddco³ by prior written approval. Payments not received by the due date shall start bearing interest at one and one-half (1.5) percent per month until paid. CUSTOMER understands and agrees that the addition of the interest to the monthly payments past due, shall in no way act to omit any other remedies Toddco³ may exercise to recover unpaid amounts due.

Toddco³ reserves the right to change the credit terms at any time when, in Toddco³'s opinion, CUSTOMER's financial condition or previous payment record so warrants.

If in Toddco³'s judgment, CUSTOMER's financial condition does not justify delivery on the terms of payment above, Toddco³ may require full or partial payment in advance, stop delivery of Products in transit, reclaim Products upon demand or terminate any order.

7. SALES TAXES

Prices are net of and do not include sales or use taxes, excises and the like, which shall be invoiced to CUSTOMER. If CUSTOMER informs Toddco³ of CUSTOMER's intention to resell product and provide a copy of a resale certificate, Toddco³ shall not charge CUSTOMER for any sales, use or similar taxes that may be assessed on account of any order placed hereunder.

CUSTOMER shall indemnify and defend Toddco³ against all liability for any such taxes and any interest, fines and penalties assessed by any governmental entity as a result of nonpayment of such taxes in reliance upon such certificate or upon a representation by CUSTOMER that no such taxes are applicable.

8. LIMITATION OF LIABILITY

To the fullest extent allowed by law, Toddco³ shall not be liable for indirect, incidental, special or consequential damages hereunder

9. FORCE MAJEURE

Toddco³ shall not be liable for failure to perform any of its obligations due to causes beyond its reasonable control. Such causes shall include but shall not be limited to such things as fire, flood, earthquake or other natural disaster, war, embargo, riot, the intervention of any governmental authority, strikes (regardless of the characterization thereof), labor slowdowns, walkouts, or shortages, material shortages, shortage of transport, and failures of Toddco³ to deliver material and components in accordance with the terms of their contracts.

10. CUSTOMER OBLIGATIONS

If CUSTOMER fails to perform its obligations hereunder for a period of 90 days or longer, Toddco³ may terminate the warranty.

11. TERMINATION/RESCHEDULE

Orders terminated, cancelled, or deliveries delayed for the convenience of the buyer are subject to additional charges.

CUSTOMER Cancellation:

If a CUSTOMER cancels an order, Toddco³ shall cease work as reasonably practical. Any and all cancellations must be in writing and acknowledged by an authorized Toddco³ representative. The CUSTOMER shall also pay any costs incurred in the performance of the terminated portion of the order, including materials, labor or NRE, to Toddco. For standard equipment available for resale to other CUSTOMERS, a restocking fee of not less than 25% shall be assessed. In addition to the restocking fee, any costs related to custom applications development, engineering, the CUSTOMER shall reimburse documentation, materials and outside services to Toddco³.

Rescheduled Order:

If an order is rescheduled more than 90 days past the original requested ship date, in whole or in part, an additional charge of 25% is due in advance as a rescheduling fee. The rescheduling fee does not apply to prepaid orders or equipment transferring title but remaining at Toddco facilities.

Return of Products Costing Less Than \$100:

Products below \$100 per item, custom products, consumable products such as hot bars, and electrodes are not available for return credit. Custom products are not available for return credit. Standard items above \$100 are subject to a 25% restock.

Cancellation for Non-Delivery or Performance:

The CUSTOMER shall notify Toddco³ in writing of the specifics for making the cancellation claim. Toddco³ will investigate and propose resolution of the specific issues and will respond in writing within 15 days of receiving the written claim. After responding to the specifics in the CUSTOMER's claim, Toddco³ will have 15 days to affect the proposed solutions unless otherwise agreed. Should Toddco³ and the CUSTOMER not agree on specifics of the claim or proposed solutions, both parties agree to binding arbitration.

Return of Rental Equipment:

If CUSTOMER defaults in any of CUSTOMER's obligations hereunder, or fails to timely return the equipment to Toddco³, CUSTOMER shall pay for all costs, expenses and legal fees incurred in recovering the equipment, recovering monies due and enforcing its rights hereunder, whether or not formal legal action is instituted.

12. WAIVERS

At Toddco³'s election, not to enforce any provision hereof or of any order issued hereunder shall not be construed to be a continuing waiver and Toddco³ reserves the right to subsequently enforce such provision unless it agrees otherwise in writing.

13. APPLICABLE LAW

All notices hereunder shall be in writing and sent by registered or certified mail, return receipt requested. Stenographic, typographic and/or clerical errors are subject to correction. Toddco³'s failure to exercise any rights hereunder shall not constitute a waiver or forfeiture of the same or any other right. CUSTOMER may not transfer or encumber any rights hereunder without the prior written consent of Toddco³.

No U.S. government procurement regulation shall be deemed a part of this agreement or be applicable to Toddco³ unless specifically agreed to in writing and incorporated herein.

The validity and interpretation of these terms and conditions and performance hereunder shall be governed by the laws of the State of California. Any legal action or arbitration undertaken hereunder shall be brought within the county of San Diego, California.

14. MODIFICATION

Any modification or departure from these terms and conditions, including any agreement to accept CUSTOMER's terms and conditions of purchase, shall be valid only if in writing and signed by an authorized representative of Toddco³.

15. WARRANTY**Hardware**

Toddco³ warrants to the original purchaser that on the date the Products are shipped they shall meet the explicitly stated and written specifications and be free from defects in material and manufacture for a period of 12 months from time of shipment. Toddco³ shall, at no charge to the original purchaser, either replace or repair products covered under warranty for products returned to TODDCO's facility. On-site service is available at Toddco³'s standard service rates plus travel expenses for portal-to-portal time.

In the case of a purchased installation the warranty begins after installation and installation must occur within 14 days following delivery. Operation and use of the machine will not occur until Toddco personnel arrive except for unpacking and placement.

This Warranty does NOT cover damage due to misuse, mishandling or negligence. Consumables such as hotbars and electrodes are warranted to be free from defects for 90 days.

Software

Toddco³ warrants to the original purchaser that on the date the Products are delivered the software shall meet all specifications. Any bugs found in the software within 1 month of receipt of equipment shall be corrected without cost to the original purchaser.

This Warranty does not entitle the owner of the equipment to any upgrades or revisions. The owner of the equipment may purchase service contracts and support in order to receive software revisions and upgrades. New features and/or desired features discovered through hindsight shall be considered on a case-by-case basis and will likely incur cost to the purchaser and are then covered by this Warranty.

Replacement Components

Any parts replaced whether under Warranty or no shall carry with them a limited Warranty. All replacement parts shall be warranted to be free from defects in material and manufacture for 30 days following receipt of part(s) or for the remainder of any warranty covering the entire machine, whichever is greater. Any part that is installed by a non- Toddco³ agent is subject to assessment in the case of failure and may not be covered under this Warranty at the sole discretion of TODDCO.

The Warranty given by Toddco³ shall be strictly limited, at Toddco³'s sole election, to the remedy or remedies provided for in the product Warranty.

TODDCO MAKES NO OTHER WARRANTIES OTHER THAN THOSE EXPRESSLY STATED HEREIN. TODDCO EXPRESSLY DISCLAIMS AND EXCLUDES IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR PARTICULAR PURPOSE, IMPLIED WARRANTIES ARISING FROM A COURSE OF DEALING OR USAGE OF TRADE, AND IMPLIED WARRANTIES AGAINST PATENT, COPYRIGHT OR TRADEMARK INFRINGEMENT. IF APPLICABLE LAW DOES NOT PERMIT TODDCO TO DISCLAIM THESE IMPLIED WARRANTIES, OR ANY OF THEM, ANY WARRANTIES IMPLIED BY LAW ARE LIMITED TO THE TERM OF THE EXPRESS WARRANTY GIVEN HEREIN.

Execution of warranty

Toddco³ reserves the right to assess the eligibility of any reported faulty equipment for coverage. Toddco³ may elect at its discretion the method of execution of the warranty whether this is replacement of part(s) only or services to replace part additionally. Warranty extensions in the form of service contracts are identical to this Warranty.

16. SOFTWARE

The following provisions apply to all software, if any, supplied hereunder:

- (a) Software license or rights, if any, exist only as expressly set forth herein or in the manufacturer's software or program license agreement.
- (b) Any Toddco³ supplied or authored software may be used on only one computer system; the software and/or license to use it may NOT be copied.
- (c) The software license terms that accompany the Equipment apply to all software and all copies delivered by Toddco³. The license, with respect to any software delivered with the equipment will terminate on the expiration or termination of a rental. CUSTOMER agrees to return the software to Toddco³ and destroy archived copies.

17. SUPPLEMENTAL TERMS AND CONDITIONS

Additional terms specific to and covered in a Toddco³ equipment proposal shall apply and are considered attachments and exhibitions of these Standard Sales Terms and Conditions. These additional conditions shall be subordinate to the terms stipulated in this document.